

M/S Silvertown Papers Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Allahabad High Court · Division Bench · 25 May 2011 · WRIT - C No. 30816 of 2011 · **Interim continued on non-cash security; counter directed; connected.**

HEADNOTE

On a challenge to additional security, the Court observed that section 47 of the Electricity Act, 2003 is to be read with clause 4.20 of the U.P. Electricity Supply Code, 2005, directed a counter-affidavit, and continued the interim order granted in similar pending writs subject to furnishing security other than cash and bank guarantee, connecting the petition with Writ-C No. 9849 of 2011.

FACTUAL SUMMARY

Silvertown Papers Limited challenged additional security demanded by Paschimanchal Vidyut Vitran Nigam Ltd. Counsel for the corporation stated that about five hundred similar writs were pending with interim orders. The petitioner argued that a pre-paid scheme would dispense with additional security; the respondents said no pre-paid metre was available in the State. The Court called for affidavits, continued the interim order granted in earlier additional-security writs, and connected the petition with Writ-C No. 9849 of 2011.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

security and additional security

HOLDING

Section 47 of the Electricity Act, 2003 is to be read with clause 4.20 of the U.P. Electricity Supply Code, 2005 in connection with security and additional security. Pending that additional-security challenge, the form of interim order granted in similar pending writs continues subject to the consumer furnishing security, other than cash and bank guarantee, to the satisfaction of the licensee. ¶ 1

PRINCIPLE TAGS

additional-security On a challenge to additional security, the Court observed that section 47 of the Electricity Act, 2003 is to be read with clause 4.20 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A PRE-PAID METERING SCHEME DISPENSES WITH ADDITIONAL SECURITY

Petitioner so contended; respondents stated no pre-paid metre was available in the State. The Court did not decide the point. ¶ 1

NOT DECIDED — MERITS OF THE ADDITIONAL-SECURITY DEMAND

Counter-affidavit directed; petition connected and listed with Writ-C No. 9849 of 2011. ¶ 1